



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Economic Resource Administrator
DATE: MARCH 20, 2024
SUBJECT: GRANT AGREEMENT - WYOMING OUTDOOR RECREATION BELVOIR RANCH TRAILHEAD PHASE 1

The City of Cheyenne has been awarded a Wyoming Outdoor Recreation (ARPA) grant for the new trailhead at the Belvoir. The scope includes a CXT prefabricated restroom, a triple panel informational kiosk for the trailhead, a covered picnic area, 1 mile of trail, grading and gravel work for the trailhead and parking lot, and access road improvements for a total project cost of \$608,420.

The federal award amount is \$486,736 with a city match of \$121,684 to be funded from the Belvoir Ranch Recreation Fund. The performance period for the project is from April 2024 through December 31, 2026.

Wyoming Outdoor Recreation grants funds are awarded for projects that occur on public lands or lands open to the public. Projects that focus on the response to COVID-19 impacts, outdoor recreation infrastructure, and economic impact will qualify for this funding, including Trail and trailhead development (equestrian, non-motorized, motorized); Water-based recreation infrastructure; Campground infrastructure and development; Recreation area development (bike parks, climbing courses, etc.); Other outdoor recreation infrastructure (disc golf courses, etc.); Maintenance of outdoor recreation infrastructure.

Please contact me directly if you have any questions or would like any additional information about this grant or the project. (rsmith@cheyennecity.org or 307-637-6285)

Federal Award Identification # (FAIN): SLFRP0005

ARPA # 1292

Agency UEI # 809915374

Subrecipient UEI # KURKMKZUFMY2

**GRANT AGREEMENT FOR WYOMING OUTDOOR RECREATION GRANT FUNDS
BETWEEN THE STATE OF WYOMING, DEPARTMENT OF STATE PARKS AND
CULTURAL RESOURCES, DIVISION OF STATE PARKS, HISTORIC SITES AND
TRAILS AND THE CITY OF CHEYENNE**

1. **Parties.** The parties to this Grant Agreement are the State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails (Agency), whose address is 2301 Central Avenue, Barrett Bldg., 4th Floor, Cheyenne, Wyoming 82002, and The City of Cheyenne (Subrecipient), whose address is: 2101 O'Neil Ave. Cheyenne, WY 82001.
2. **Purpose of Grant Agreement.** The purpose of this Grant Agreement is to set forth the terms and conditions by which the Agency shall provide federal Wyoming Outdoor Recreation Grant (WORG) funds to the Subrecipient and the Subrecipient shall acquire, construct, develop, or maintain Belvoir Ranch Trailhead Ph 1 (Project) at a location Belvoir Ranch (41.057891, -105.186723) described in Attachment A, Scope of Work which is attached to and incorporated into this Grant Agreement by this reference. Performance by Subrecipient of the requirements of this Grant Agreement and compliance with all federal rules and regulations is a condition to Subrecipient's receipt of monies hereunder.
3. **Term of Grant Agreement.** This Grant Agreement is effective when all parties have executed it, the Effective Date. The Period of Performance of the Grant Agreement is the Effective Date through December 31, 2026. This Grant Agreement shall terminate one-hundred eighty (180) days after that period on June 30, 2027. All services must be completed during the Period of Performance.
4. **Payment.**
 - A. The Agency agrees to reimburse the Subrecipient for the services described in Section 6 below and in Attachment A. Total reimbursement under this Grant Agreement shall not exceed four hundred eighty-six thousand, seven hundred thirty-six dollars and zero cents (\$486,736.00). Payment shall be made in accordance with the budget attached hereto as Attachment B, Financial Plan, which is attached to and incorporated into this

Grant Agreement between the State of Wyoming, Department of State Parks and Cultural Resources and
The City of Cheyenne

Grant Agreement by this reference. The Subrecipient shall submit Reimbursement Requests using the required reimbursement form, an example of which is attached and incorporated herein as Attachment C, on a Federal quarterly basis by December 31, March 31, June 30, and September 30, when expenses have occurred. If the Subrecipient does not submit a Reimbursement Request within ten (10) months of project obligation, funding will be de-obligated. Payment of Reimbursements shall be made within forty-five (45) days after submission of approved Reimbursement Request pursuant to Wyo. Stat. § 16-6-602. Subrecipient shall submit Reimbursement Requests in sufficient detail to ensure that payments may be made in conformance with this Grant Agreement. Overhead will not be assessed.

- B.** No payment shall be made for work performed before the Effective Date of this Grant Agreement. Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Grant Agreement, payment under this Grant Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of Agency.
- C.** Except as otherwise provided in this Grant Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Grant Agreement.

5. Principal Contacts.

- A. Agency:** Brynn Hirschman, or designee
2301 Central Avenue, Barrett Building, 4th Floor
Cheyenne, WY 82002, 307-701-5011
brynn.hirschman@wyo.gov
- B. Subrecipient:** Project Manager
Renee Smith, Grant Manager, or designee
2101 O'Neil Ave.
Cheyenne, WY 82001 and 307-637-6285
rsmith@cheyennecity.org

6. Responsibilities of Subrecipient. The Subrecipient agrees to:

- A. Provide the services described in Attachment A in accordance with the budget in Attachment B.
- B. The Subrecipient agrees and warrants that prior approval in writing shall be obtained from the Agency with respect to alteration or conversion of use in part or total of the facility.
- C. The Subrecipient agrees and warrants that applicable federal laws with respect to barrier free access have been complied with in the design and function of the facility as described in Attachment A.
- D. Establish and maintain a separate Project account, either independently or within its existing accounting system, identifiable as the Project account. All charges to the Project account shall be supported by properly executed invoices, contracts or vouchers evidencing in proper detail the nature and propriety of the charge, in accordance with the rules and regulations of the Agency and the Federal Government.
- E. Establish a Project file system, all checks, invoices, contracts, vouchers, orders or other accounting documents pertaining in whole or in part to the Project shall be clearly identified with grant number and readily accessible. All of the above-mentioned documents including reimbursement request packages and inspection reports should be kept in the project file and available for review at any time.
- F. Pay in full all of the approved costs of said acquisition, construction, development, or maintenance of the Project, and to be reimbursed in accordance with the approved grant amount of said approved, validated, and contracted total cost by the Agency.
- G. Provide progress reports on a Federal quarterly basis using the required reimbursement form, an example of which is attached and incorporated herein as Attachment D.

7. **Responsibilities of Agency.** The Agency agrees to:

- A. Secure funding from the American Rescue Plan Act, as provided in the State and Local Fiscal Recovery Funds guidelines and as are made available by the Federal Government, for the Project.

- B. Pay Subrecipient in accordance with Section 4 above.
- C. Retain all records related to the Project as set forth in this Grant Agreement.

8. **Special Provisions.**

- A. **Assumption of Risk.** The Subrecipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with state or federal requirements. The Agency shall notify the Subrecipient of any state or federal determination of noncompliance.
- B. **Environmental Policy Acts.** Subrecipient agrees all activities under this Grant Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- C. **Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Grant Agreement may be terminated without penalty if a private entity that receives funds under this Grant Agreement:
 - (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- D. **Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Grant Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Grant Agreement. If Subrecipient breaches or violates this warranty, Agency may, at its discretion, terminate this Grant Agreement without liability to Agency, or deduct from the agreed-upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee. The Subrecipient shall comply with the Copeland Anti-Kickback Act (18 U.S.C. § 874) as supplemented in the Department of Labor Regulations

(29 CFR, Part 3). This Act provides that the Subrecipient is prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public works to give up any part of the compensation to which he or she is otherwise entitled.

- E. Limitations on Lobbying Activities.** By signing this Grant Agreement, Subrecipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by Subrecipient or its subcontractors in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, Grant Agreement, cooperative agreement, or loan. Subrecipient and subcontractors may also be required to submit an additional certification statement and disclosure form acceptable to the Agency before commencement of the work.
- F. Monitoring Activities.** Agency shall have the right to monitor all activities related to this Grant Agreement that are performed by Subrecipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Grant Agreement; and to observe personnel in every phase of performance of Grant Agreement related work.
- G. Nondiscrimination.** The Subrecipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, et seq.), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, et seq., and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Grant Agreement. Federal law requires the Subrecipient to include all relevant special provisions of this Grant Agreement in every subcontract Agreement awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subcontractor.
- H. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Grant Agreement, shall be paid by either party.
- I. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press

releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Subrecipient and related to the services and work to be performed under this Grant Agreement, shall identify the Wyoming Office of Outdoor Recreation as the sponsoring agency and shall not be released without prior written approval of Agency. The Subrecipient must display a sign provided by the Agency at the project site throughout the life of the completed project.

- J. Suspension and Debarment.** By signing this Grant Agreement, Subrecipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Grant Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 44 CFR Part 17, or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Subrecipient agrees to notify the Agency by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Grant Agreement.
- K. Administration of Federal Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200 as required by the Federal Funding Accountability and Transparency Act (FFATA) where the Federal award name is the American Rescue Plan Act of 2021 (ARPA) Coronavirus State and Local Fiscal Recovery Fund (CSLFRF) Program, and the project relates to the State's Wyoming Outdoor Recreation Grant (WORG) program; 2 CFR Part 200.332; CSLFRF 2022 Final Rule; CSLFRF Program Compliance and Reporting Guidance; Buy America 23 CFR 635; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by Agency.
- (i) Name of Federal awarding agency: the U.S. Department of Treasury
 - (ii) Pass-through entity: the State of Wyoming
 - (iii) The Assistance Listing Number (ALN) is 21.027, Coronavirus State and Local Fiscal Recovery Fund (CSLFRF) Program

- (iv) This sub-award is not R&D
- (v) There is no indirect cost rate for this sub-award

- L. Copyright License and Patent Rights.** Subrecipient acknowledges that federal grantor, the State of Wyoming, and Agency reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Grant Agreement; and (2) any rights of copyright to which Subrecipient purchases ownership using funds awarded under this Grant Agreement. Subrecipient must consult with Agency regarding any patent rights that arise from, or are purchased with, funds awarded under this Grant Agreement.
- M. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 C.F.R. Part 200, Subpart F. If an audit is conducted, regardless of the findings, the Subrecipient shall provide one (1) copy of the audit report to Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.
- N. Freedom of Information Act (FOIA).** Public access to Grant Agreement records must not be limited, except when such records must be kept confidential and would have been exempted from disclosure pursuant to Freedom of Information Act regulations (5 U.S. C. 552).
- O. Non-Supplanting Certification.** Subrecipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. Subrecipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Grant Agreement.
- P. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of Agency. Any income attributable to the

grant funds distributed under this Grant Agreement must be used to increase the scope of the program or returned to Agency.

9. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Grant Agreement which are mutually agreed upon by the parties to this Grant Agreement shall be incorporated by written instrument, executed by all parties to this Grant Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Contract shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Contract as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Contract and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Grant Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Grant Agreement without the prior written consent of the other party. The Subrecipient shall not use this Grant Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Grant Agreement.
- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Grant Agreement, the Grant Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable

for any future payments due or for any damages as a result of termination under this section.

- F. Award of Related Agreements.** The Agency may award supplemental or successor agreements for work related to this Grant Agreement or may award agreements to other subrecipients for work related to this Grant Agreement. The Subrecipient shall cooperate fully with other subrecipients and the Agency in all such cases.
- G. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Grant Agreement.
- H. Confidentiality of Information.** All documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Grant Agreement shall be kept confidential by the Subrecipient unless written permission is granted by the Agency for its release. If and when Subrecipient receives a request for information subject to this Grant Agreement, Subrecipient shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- I. Entirety of Grant Agreement.** This Grant Agreement, consisting of fourteen (14) pages; Attachment A, Scope of Work, consisting of three (3) pages; and Attachment B, Financial Plan, consisting of one (1) page; Attachment C, Reimbursement Form, consisting of two (2) pages; Attachment D, Progress Report, consisting of two (2) pages; and Attachment E, Buy America Requirements, consisting of four (4) pages, represents the entire and integrated Grant Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Grant Agreement and the language of any attachment or document incorporated by reference, the language of this Grant Agreement shall control.
- J. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, et seq.) and any and all ethical standards governing Subrecipient's profession.

- K. Extensions.** Nothing in this Grant Agreement shall be interpreted or deemed to create an expectation that this Grant Agreement will be extended beyond the term described herein. Any extension of this Grant Agreement shall be initiated by the Agency and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Grant Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Grant Agreement.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Grant Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Contract shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Subrecipient shall function as an independent contractor for the purposes of this Grant Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Grant Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Grant Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Grant Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Grant Agreement. Nothing in this Grant Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Grant Agreement.

- O. Notices.** All notices arising out of, or from, the provisions of this Grant Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Grant Agreement.
- P. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Grant Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and documents to the Agency in a usable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers. Upon Agency's verified receipt of such information, Subrecipient agrees to physically and electronically destroy any residual Agency-owned data, regardless of format, and any other storage media or areas containing such information. Subrecipient agrees to provide written notice to Agency confirming the destruction of any such residual Agency-owned data.
- Q. Patent or Copyright Protection.** The Subrecipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Subrecipient or its subcontractors will violate any such restriction. The Subrecipient shall defend and indemnify the Agency for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- R. Prior Approval.** This Grant Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Grant Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- S. Insurance Requirements.** Contractor is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency.

- T. Severability.** Should any portion of this Grant Agreement be judicially determined to be illegal or unenforceable, the remainder of the Grant Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Grant Agreement and the Subrecipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 139101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Grant Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- V. Taxes.** The Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- W. Termination of Grant Agreement.** This Grant Agreement may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Grant Agreement may be terminated by the Agency immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Grant Agreement.
- X. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Grant Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Grant Agreement shall operate only between the parties to this Grant Agreement and shall insure solely to the benefit of the parties to this Grant Agreement. The provisions of this Grant Agreement are intended only to assist the parties in determining and performing their obligations under this Grant Agreement.

- Y. Time is of the Essence.** Time is of the essence in all provisions of this Grant Agreement.
- Z. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Grant Agreement.
- AA. Waiver.** The waiver of any breach of any term or condition in this Grant Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. Counterparts.** This Grant Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Grant Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Grant Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

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10. **Signatures.** The parties to this Grant Agreement, either personally or through their duly authorized representatives, have executed this Grant Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Grant Agreement.

The Effective Date of this Grant Agreement is the date of the signature last affixed to this page.

AGENCY:

State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails

Dave Glenn, Director

Date

SUBRECIPIENT:

City of Cheyenne

Patrick J. Collins, Mayor of City of Cheyenne

Date

ATTEST:

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Jodi A. Darrough #237232
Jodi A. Darrough, Senior Assistant Attorney General

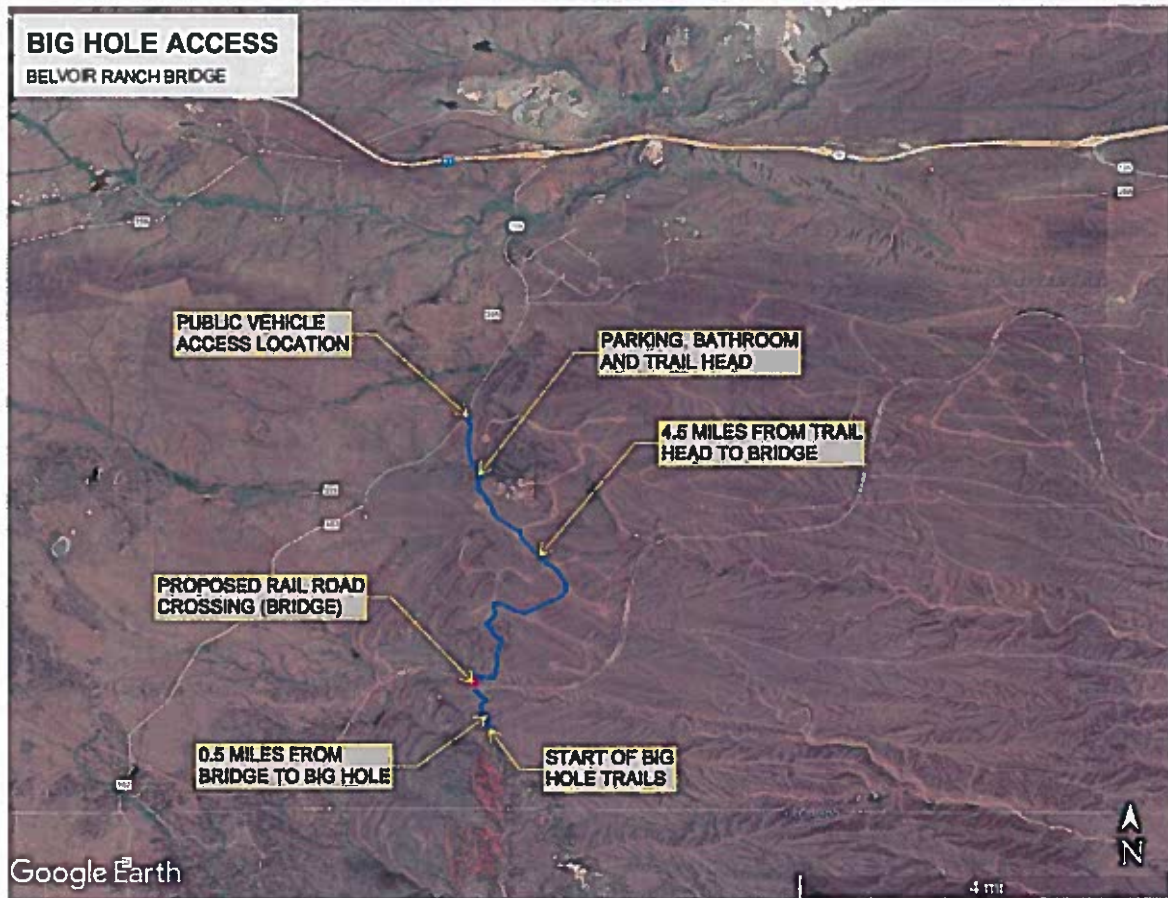
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Date

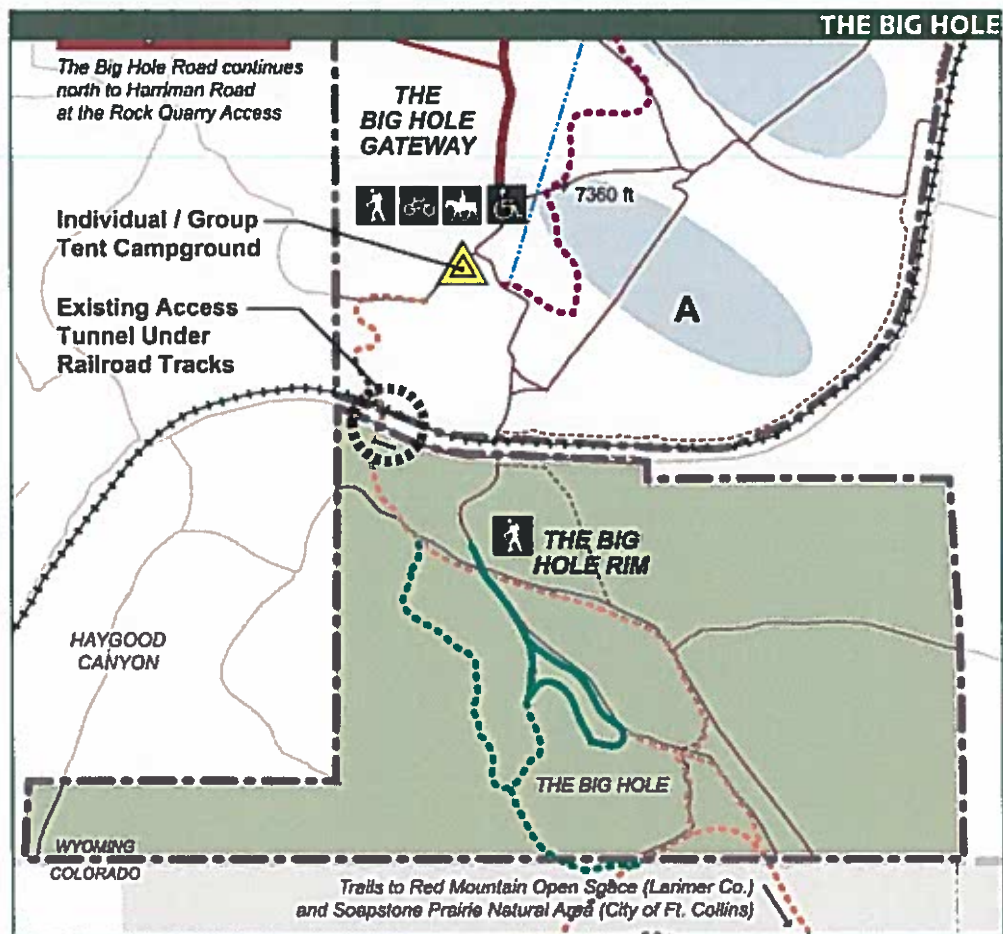
Attachment A: Scope of Work
Belvoir Ranch Trailhead

- A. Project Description:** The Belvoir Ranch Trailhead Phase 1 project is the first component of a larger master plan to create a new outdoor recreation destination at Belvoir Ranch. This plan highlights and preserves the natural features of this open space with links to the Soapstone Prairie Natural Area in Colorado and increases the inventory of Wyoming's network of trail systems which is needed after the significant rise in outdoor recreation usage due to the pandemic. Grant funds will be used to make necessary access road and trail improvements on Belvoir Ranch after being closed to the public for 30 years, establish a designated trailhead, and make the Big Hole Gateway accessible from Wyoming, serving as a catalyst for future trail development. The project will also include a gravel parking area, the installation of a prefabricated vandal-resistant and ADA-compliant restroom facility and supportive infrastructure, a covered picnic area, and an informational kiosk.

Vendor-related costs include the CXT Restroom \$83,087.50; the informational kiosk \$20,000; the covered picnic area \$163,645.50; trail, parking lot, and road construction, grading/gravel work \$325,000. There will be a 2.82% Indirect Cost rate applied to the grant as an administrative expense. Matching funds are allocated from the Belvoir Ranch Recreation Special Fund. Funds will be obligated by 12-31-2024 and fully expended by 12-31-2026.

B. Maps of Project Area





**Attachment B: Financial Plan
Belvoir Ranch Trailhead Ph 1**

ITEM #	DESCRIPTION	NO. OF UNITS	TOTAL COST \$
1	CXT Restroom: Tioga Special 11'11" x 14'4"		\$35,550.00
2	CXT Restroom: Shipping Cost		\$23,800.00
3	CXT Restroom: Earth Work		\$4,500.00
4	CXT Restroom: Chase Option		\$3,500.00
5	CXT Restroom: Solar Light Kit		\$1,900.00
6	CXT Restroom: ADA Concrete		\$3,000.00
7	CXT Restroom: Overage/Inflation Costs 15%		\$10,837.50
8	Kiosk- Triple Panel		\$20,000.00
9	Covered Picnic Area: Picnic Tables	6	\$8,975.50
10	Covered Picnic Area: Concrete 4" fiber mesh on 4" base		\$41,000.00
11	Covered Picnic Area: Metal Shelter 30'x40' with ribbed metal roof		\$55,698.00
12	Covered Picnic Area: Shipping-Roof		\$8,600.00
13	Covered Picnic Area: Installation Cost		\$27,431.00
14	Covered Picnic Area: Trash Cans	2	\$596.00
15	Covered Picnic Area: Overage/Inflation Cost 15%		\$21,345.00
16	Phase 1 Trail 1 Mile of Trail @ \$10/linear foot		\$50,000.00
17	Trailhead/Parking Lot- Grading/Gravel Work		\$75,000.00
18	Access Road Improvements- Grading/Gravel Work		\$78,316.00
19	Administrative- 2.82% Indirect Cost		\$16,687.00
20			
21			
Total			\$486,736.00

WORG Reimbursement Request

Project Name:

NRT#:

Date submitted:

Project Period Covered for this billing:

Reimbursement #: **Final:** Yes No

Grant Award Amount:

Project Sponsor:

Street Address:

City, ST ZIP Code:

Phone Number:

State Vendor #:

'EXHIBIT B' LINE ITEM #	'Exhibit B' ELEMENTS OF COST – ITEM DESCRIPTION	TOTAL COST \$ TO-DATE	- PREVIOUS BILLINGS \$ AMOUNT	\$ AMOUNT THIS BILLING
	TOTAL PROJECT \$ COSTS			
TOTAL \$ AMOUNT THIS BILLING				
REMAINING GRANT \$ AMOUNT				

I hereby certify to the best of my knowledge and ability, that this billing is correct and just and is based upon actual payment(s) of record; that attached costs are allowable, allocable, reasonable, and apply to the

Attachment C: Reimbursement Request of the Grant Agreement between the State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails and the City of Cheyenne

WORG Reimbursement Request

project; that reimbursement has not been received from any other state or federal government source; that the work and services are in accord with the project agreement including amendments thereto; and, that the quality of work and services under the project agreement is satisfactory and is consistent with the amount billed.

Signature of Authorized Project Contact	Printed Name	Title	Date
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Reviewed and Approved By	Printed Name	Title	Date
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WORC Quarterly Progress Report

Project Name:

WORC #:

Date submitted:

Project Period: 1-3, 4-6, 7-9, 10-12

Dates work completed:

Project Status: In Progress On-Hold
Complete

Grant Award Amount:

Project Sponsor:

Street Address:

City, ST, ZIP Code:

Phone Number:

State Vendor #:

Materials purchased for completion of this project. (INCLUDE ALL IRON OR STEEL ITEMS ON SEPARATE LINES)

LINE ITEM #	ELEMENTS OF COST – ITEM DESCRIPTION	QTY.	\$ COST PER UNIT	TOTAL \$ COST
TOTAL \$				

Personnel Costs

EMPLOYEE NAME	WORK COMPLETED	HOURS WORKED	HOURLY WAGE \$	TOTAL \$ COST
TOTAL \$				

Please send pictures of any completed sections of the project.

Description of work completed for this reporting period:

Are there any foreseen issues or problems with the completion of this project?

If the project is ready to close, please note this here:

Signature of Authorized Project Contact	Printed Name	Title	Date
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Attachment E
Buy America Requirements

A. Background: As required by Section 70914 of the Bipartisan Infrastructure Law (also known as the Infrastructure Investment and Jobs Act), P.L. 117-58, and specified in Executive Order 14005, Ensuring the Future is Made in All America by All of America's Workers, none of the funds under a federal award that are part of a Federal financial assistance program for infrastructure may be obligated for a project unless all of the iron, steel, manufactured products, and construction materials used in the project are produced in the United States, unless subject to an approved waiver.

- a. The requirements of this section must be included in all subawards, including all contracts and purchase orders for work or products under this program.
- b. Grants may be covered by a Waiver to the Buy America provisions. Waivers are published here: <https://doi.gov/grants/BuyAmerica/GeneralApplicabilityWaivers>.

B. Definitions:

1. "Construction materials" includes an article, material, or supply that is or consists primarily of:
 - non-ferrous metals;
 - plastic and polymer-based products (including polyvinylchloride, composite building materials, and polymers used in fiber optic cables);
 - glass (including optic glass);
 - Lumber;
 - Drywall;
 - and anything that is installed, built, or purchased.
2. "Construction Materials" does not include cement and cementitious materials, aggregates such as stone, sand, or gravel, or aggregate binding agents or additives.
3. "Domestic content procurement preference" means all iron and steel used in the project are produced in the United States; the manufactured products used in the project are produced in the United States; and the construction materials used in the project are produced in the United States.
4. "Infrastructure" includes, at a minimum, the structures, facilities, and equipment for, in the United States, roads, highways, and bridges; public transportation; dams, ports, harbors, and other maritime facilities; intercity passenger and freight railroads; freight and intermodal facilities; airports; water systems, including

drinking water and wastewater systems; electrical transmission facilities and systems; utilities; broadband infrastructure; and buildings and real property. Infrastructure includes facilities that generate, transport, and distribute energy. Infrastructure includes all amenities funded through this Agreement.

5. “Project” means the construction, alteration, maintenance, or repair of infrastructure in the United States.

C. Infrastructure Requirements: Recipients of an award of Federal financial assistance are hereby notified that none of the funds provided under this award may be used for a project for infrastructure unless:

1. all iron and steel used in the project are produced in the United States--this means all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States;
2. all manufactured products used in the project are produced in the United States — this means the manufactured product was manufactured in the United States; and the cost of the components of the manufactured product that are mined, produced, or manufactured in the United States is greater than 55 percent (55%) of the total cost of all components of the manufactured product, unless another standard for determining the minimum amount of domestic content of the manufactured product has been established under applicable law or regulation; and
3. all construction materials are manufactured in the United States—this means that all manufacturing processes for the construction material occurred in the United States.

The Buy America preference only applies to articles, materials, and supplies that are consumed in, incorporated into, or affixed to an infrastructure project. As such, it does not apply to tools, equipment, and supplies, such as temporary scaffolding, brought to the construction site and removed at or before the completion of the infrastructure project. Nor does a Buy America preference apply to equipment and furnishings, such as movable chairs, desks, and portable computer equipment, that are used at or within the finished infrastructure project, but are not an integral part of the structure or permanently affixed to the infrastructure project.

For further information on the Buy America preference, please visit www.doi.grants/BuyAmerica. Additional information can also be found at the White House Made in America Office website: www.whitehouse.gov/omb/management/made-in-america/.

D. Waivers: When necessary, the Subrecipient may apply for a waiver. The waiver request must be submitted to the Agency before work begins. Waivers must then be approved by Department of the Interior (DOI) who may grant a waiver from these requirements, subject to review by the Made in America Office. The DOI may waive the application of the domestic content procurement preference in any case in which it is determined that one of the below circumstances applies:

1. Non-availability Waiver: the types of iron, steel, manufactured products, or construction materials are not produced in the United States in sufficient and reasonably available quantities or of a satisfactory quality;
2. Unreasonable Cost Waiver: the inclusion of iron, steel, manufactured products, or construction materials produced in the United States will increase the cost of the overall project by more than 25 percent; or
3. Public Interest Waiver: applying the domestic content procurement preference would be inconsistent with the public interest.

Applications for waiver must be in writing, signed by the Subrecipient's Principal Contact, and include the following. A form for this purpose will be provided by the Agency.

- a. Type of waiver requested (non-availability, unreasonable cost, or public interest).
- b. Requesting entity and Unique Entity Identifier (UEI) submitting the request.
- c. Department of Interior Bureau or Office who issued the award.
- d. Federal financial assistance listing name and number (reference block 2 on DOI Notice of Award)
- e. Financial assistance title of project (reference block 8 on DOI Notice of Award).
- f. Federal Award Identification Number (FAIN).
- g. Federal funding amount (reference block 11.m. on DO Notice of Award).
- h. Total cost of Infrastructure expenditures (includes federal and non-federal funds to the extent known).
- i. Infrastructure project description(s) and location(s) (to the extent known).
- j. List of iron or steel item(s), manufactured goods, and construction material(s) the recipient seeks to waive from Buy America requirements. Include the name, cost, countries of origin (if known), and relevant PSC or NAICS code for each.
- k. A certification that the recipient made a good faith effort to solicit bids for domestic products supported by terms included in requests for proposals, contracts, and nonproprietary communications with the prime contractor.
- l. A statement of waiver justification, including a description of efforts made (e.g., market research, industry outreach) by the recipient, in an attempt to avoid the need for a waiver. Such a justification may cite, if applicable, the absence of any Buy America-compliant bids received in response to a solicitation.

- m. Anticipated impact if no waiver is issued. Approved waivers will be posted at www.doi.gov/grants/BuyAmerica/ApprovedWaivers; recipients requesting a waiver will be notified of their waiver request determination by an awarding officer.
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There may be instances where an award qualifies, in whole or in part, for an existing DOI general applicability waiver as described at www.doi.gov/grants/BuyAmerica/GeneralApplicabilityWaivers.

If the specific financial assistance agreement, infrastructure project, or non-domestic materials meets the criteria of an existing general applicability waiver within the limitations defined within the waiver, the Subrecipient will notify the Agency of the general applicable waiver before work begins.